

## 26TRCV00620 26TRCV00620

County: los-angeles

Division: Civil Law and Motion

Department: M

Hearing date: 2026-07-16

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Case Number: 26TRCV00620 Hearing Date: July 16, 2026 Dept: M

LOS ANGELES SUPERIOR COURT – SOUTHWEST DISTRICT

Honorable Amy N. Carter

Department M

Thursday – July 16, 2026

Calendar No.

PROCEEDINGS

Margie

Mary Silva v. Vestar California XXX, LLC, et al.

26TRCV00620

1.

Redcon 1, Inc.'s Demurrer

to Complaint

TENTATIVE RULING

Redcon 1, Inc.'s Demurrer to Complaint is overruled.

Background

Plaintiff filed the Complaint on February 20, 2026. Plaintiff

alleges the following facts. On May 20, 2024, Plaintiff fell while walking and pushing a stroller at Peninsula Shopping Center located at 67 Peninsula Center in the City of Rolling Hills Estates, California 90274. Plaintiff fell on a large crack in the asphalt. Plaintiff alleges the following causes of action:

1. General Negligence; 2. Premises Liability.

#### Meet and Confer

Defendant filed a meet and confer declaration in sufficient compliance with CCP § 430.41. (Decl., Airene Williamson).

#### Demurrer

A demurrer tests the sufficiency of a complaint as a matter of law and raises only questions of law. (Schmidt v. Foundation Health (1995) 35 Cal.App.4th 1702, 1706.) In testing the sufficiency of the complaint, the court must assume the truth of (1) the properly pleaded factual allegations; (2) facts that can be reasonably inferred from those expressly pleaded; and (3) judicially noticed matters. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.)

The Court may not consider contentions, deductions, or conclusions of fact or law. (Moore v. Conliffe (1994) 7 Cal.App.4th 634, 638.) Because a demurrer tests the legal sufficiency of a complaint, the plaintiff must show that the complaint alleges facts sufficient to establish every element of each cause of action. (Rakestraw v. California Physicians Service (2000) 81 Cal.App.4th 39, 43.)

Where the complaint fails to state facts sufficient to constitute a cause of action, courts should sustain the demurrer. (C.C.P., § 430.10(e); Zelig v. County of Los Angeles (2002) 27 Cal.App.4th 1112, 1126.)

Sufficient facts are the essential facts of the case

"with reasonable precision and with particularity sufficiently specific to acquaint the defendant with the nature, source, and extent of his cause of action." (Gressley v. Williams (1961) 193 Cal.App.2d 636, 643-644.)

"Whether the plaintiff will be able to prove the pleaded facts is irrelevant to ruling upon the demurrer."

(Stevens v. Superior Court (1986) 180 Cal.App.3d 605, 609–610.) Under Code Civil Procedure §

430.10(f), a demurrer may also be sustained if a complaint is "uncertain." Uncertainty exists where a complaint's

factual allegations are so confusing they do not sufficiently apprise a defendant of the issues it is being asked to meet. (*Williams v. Beechnut Nutrition Corp.* (1986) 185 Cal.App.3d 135, 139, fn. 2.)

Defendant demurs to the Complaint and the first and second causes of action for failure to state sufficient facts to state a cause of action. CCP § 430.10(e). Defendant argues that the "Complaint consists entirely of impermissible group pleading that lumps all named defendants together without alleging any specific act, omission, duty, or legal relationship attributable to Redcon. The Complaint fails to plead any facts establishing that Redcon owned, leased, possessed, controlled, or managed the subject premises; that Redcon created or had notice of the alleged dangerous condition; or that any conduct by Redcon was a cause of Plaintiff's alleged injuries." (Notice of Demurrer, p. 2, lines 1-5).

First Cause of Action for Negligence

Second Cause of Action for Premises Liability

Defendant's demurrer to the first and second causes of action is overruled. Plaintiff states sufficient facts to state a cause of action.

"To state a cause of action for negligence, a plaintiff must allege (1) the defendant owed the plaintiff a duty of care, (2) the defendant breached that duty, and (3) the breach proximately caused the plaintiff's damages or injuries." *Lueras v. BAC Home Loans Servicing, LP* (2013) 221 Cal.App.4th 49, 62. The elements of a cause of action for premises liability are the same as those for negligence. Accordingly, the plaintiff must prove, legal duty to use due care, a breach of such legal duty, and the breach as the proximate or legal cause of the resulting injury." *Jones v. Awad* (2019) 39 Cal.App.5th 1200, 1207 (internal citations and quotations omitted).

Here, Plaintiff has alleged sufficient facts to meet each of the elements – duty owed, breach, causation, and damages. Plaintiff alleges that she was lawfully on Defendant's property and that Defendant owned, maintained, and managed the property. Thus, as the party that owned, maintained, or managed the property Defendant had a duty of care to maintain the property in a safe manner. Plaintiff alleges that Defendant breached that duty by creating a hazardous condition on the property namely the condition of the

ramp from the parking lot to the sidewalk. Plaintiff alleges resulting damages. (Complaint, pages 5-6). Plaintiff has provided a sufficient straightforward pleading on a Form Complaint of simple causes of action of negligence and premises liability.

Defendant argues that Plaintiff has impermissibly grouped each Defendant together and that Plaintiff has not alleged facts regarding the existence of a duty of care, any breach of care, and causation of damages. Contrary to Defendant's arguments, Plaintiff did allege that Defendant owned, maintained, and managed the property. If Defendant is arguing that it did not own, maintain, or manage the property, or did not control the property, Defendant is attempting to introduce facts that are not included in the Complaint. For example, even Defendant's contention that it is not a public entity and thus that the portion of the Complaint referencing dangerous condition of public property does not apply to it cannot be adjudicated with a demurrer. Similarly, Defendant's contention that Civ. Code § 846 does not apply also relies on facts outside the scope of the pleadings.

For purposes of a demurrer, the Court must deem the allegations of the Complaint as true. The Court reiterates the simple, well-recognized, and longstanding law regarding demurrers – the factual matters set forth in the Complaint are deemed true and the Court cannot adjudicate factual issues with a demurrer.

To the extent that Defendant is seeking more particularized facts, specificity in pleading is not required to plead a negligence cause of action. "To survive demurrer, a plaintiff is only required to plead ultimate facts.... Whether [they] can produce at trial, or in response to a motion for summary judgment, evidence that will in fact support all or any of [their] allegations ... is another matter. [A] plaintiff is required only to set forth the essential facts of his case with reasonable precision and with particularity sufficient to acquaint a defendant with the nature, source and extent of his cause of action. [Citation.] If there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend. [ . . . ] There is no need to require specificity in the pleadings because modern discovery procedures necessarily affect the amount of detail that should be required in a pleading." *Roger v. County of Riverside* (2020) 44 Cal.App.5th 510, 533 (internal citations and quotations omitted; emphasis in original).

The demurrer is overruled. Defendant is ordered to file and serve an Answer within 10 days of this date.

Plaintiff is ordered to give notice of this ruling.